

Carter v. Officer Blake - Complaint

Complaint in Carter v. Officer Blake. Procedural posture: District court denied qualified immunity at summary judgment after finding disputed facts about a traffic-stop seizure. Record material: The district court identified a dispute over whether the plaintiff was handcuffed after complying. Issue: Interlocutory jurisdiction over legal questions only. Standard of review: de novo jurisdictional review. Record excerpt: Qualified immunity denial order. The order denies qualified immunity after assuming plaintiff's account of compliance and handcuffing. Nature of suit: Civil Rights - Section 1983. Lower tribunal: U.S. District Court for the Middle District of North Carolina.